

02:00 PM

23-CIV-00494
LINE 3

NORTHERN CALIFORNIA COLLECTION SERVICE, INC. VS. AMPEX ENGINEERING &
CONSTRUCTION INC,

NORTHERN CALIFORNIA COLLECTION SERVICE, INC.
AMPEX ENGINEERING & CONSTRUCTION INC,

ANDRE J. LELIEVRE
LAWRENCE A. JACOBSON

PLAINTIFF: NORTHERN CALIFORNIA COLLECTION SERVICE, INC.'S MOTION FOR AN ORDER COMPELLING
DEFENDANT TO SERVE INITIAL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET FOUR), AND TO
IMPOSE MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Northern California Collection Service, Inc.'s Motion for an Order Compelling Defendant
Ampex Engineering & Construction, Inc. to Serve Initial Responses to Requests for Production (Set
Four) and to Impose Monetary Sanctions is DENIED.

Defendant Ampex Engineering & Construction, Inc.'s Request for Judicial Notice is GRANTED but not
to the truth of any matter asserted therein.

A party is required to serve responses to requests for production within thirty days of service. (Code of
Civ. Proc., § 2031.260, subd. (a).) A party who fails to serve a timely response to a request waives any
objection, and the propounding party is then entitled to move for an order compelling a response. (*Id.*, at
§ 2031.300, subds. (a)–(b).)

NCCS served Ampex with a fourth set of requests for production on October 30, 2025. (Dec. 16, 2025
Compendium of Exhibits, p. 119 [all citations to filed papers are to those filed in support of or in
opposition of the present motion].) As of December 16, 2025, no responses to the set of requests had been
served. (*Id.*, at p. 5, ¶ 7.) NCCS thus filed the instant motion to compel responses and impose monetary
sanctions for the failure to respond.

Due to a mistaken assumption that NCCS tacitly agreed to stay discovery while the parties mediated the
case, Ampex's counsel did not calendar the deadline to respond—resulting in Ampex's failure to serve
timely responses. (Aug. 25, 2026 Declaration of Lawrence A. Jacobson, ¶¶ 5–9.) After receiving notice of
the motion, Ampex served verified responses without objections to each request in the set on December
17, 2025. (*Id.*, at ¶ 18; Aug. 25, 2026 Compendium of Exhibits, pp. 21–53.)

Despite having received the responses and failing to raise any issue with the responses' substance, NCCS
nonetheless persists in seeking an order compelling Ampex's responses. (See Sep. 2, 2026 Memorandum
of Points & Authorities, p. 1, ll. 22–24.) While NCCS is correct that a trial court has *authority* to order
further responses when untimely responses are served while a motion to compel is pending (see *Sinaiko
Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408), such an
order would be entirely moot here. Accordingly, the request for an order compelling responses is denied.

Furthermore, while the imposition of sanctions against “any party, person, or attorney who
unsuccessfully makes or opposes a motion to compel a response to interrogatories” is otherwise
mandatory, the present “circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §

2031.300, subd. (c); see also *id.*, at § 2023.030 subd. (a).) NCCS has unsuccessfully moved for an order compelling response, but the motion was prompted by Ampex's misuse of discovery by failing to serve timely responses. (See *id.*, at § 2023.010, subd. (d).) Accordingly, both parties' requests for mandatory and discretionary monetary sanctions are denied.

NCCS's attorney of record is advised he has sworn an oath to conduct himself with courtesy at all times. (Cal. Rules of Court, rules 9.7(a)–(b).) Such courtesy includes an attempt to resolve simple and obvious disputes informally before resorting to motion practice and wasting judicial resources. (See State Bar of California Attorney Guidelines of Civility and Professionalism, § 10.) A simple phone call or email here could have prevented all the time and expense the parties, their attorneys, and the Court have now incurred. The fact that the Civil Discovery Act does not require a motion to compel initial responses to be accompanied by a meet and confer declaration does not alter this conclusion; courtesy in many circumstances requires more than compliance with statutory law. If there is further refusal to abide by the normative guidelines of the State Bar and other sources of valuable advice on how an attorney should strive to conduct himself or herself, the Court is inclined to enforce such compliance.

NCCS and its counsel are also reminded they are statutorily obligated to accept electronic service. (See Code Civ. Proc., § 1010.6, subd. (b)(2).) NCCS admits that it is indeed NCCS's software that is causing the rejection of Ampex's attempts at electronic service. (Sep. 2, 2026 Memorandum of Points & Authorities, p. 2, ll. 8–9.) If NCCS is unwilling to take steps to permit electronic service as required from Ampex's electronic service address of record, the Court is inclined to relieve Ampex of the obligation to serve papers electronically and ensure any additional cost or inconvenience therefrom is borne by NCCS.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-04607 SEAL ROCK, INC., ET AL. VS. RICHARD TRAVERSO, ET AL.

LINE 4

SEAL ROCK, INC.
RICHARD TRAVERSO

SOBY M. MATHEWS
DANIEL S. MASON

PLAINTIFF: SEAL ROCK, INC.'S MOTION TO COMPEL ATTENDANCE AT DEPOSITION AND FOR MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiffs' motion to compel the deposition of Defendant Richard Traverso is GRANTED as to compelling the appearance and testimony of Defendant and DENIED as to compelling the production of documents demanded in the deposition notice.

Plaintiffs' request for sanctions is GRANTED, in part, as to sanctions against Defendant Traverso and DENIED as to Defendant's counsel.

On January 27, 2026, Plaintiffs served a deposition notice on Defendant by email. The deposition notice called for Defendant to appear to testify and to produce documents at the deposition to be held on March 27, 2026. According to defense counsel, Plaintiffs were already aware at the time that defense counsel had lost contact with his client (as of December 2025).

On January 30, 2026, Defendants' counsel, Daniel Mason, filed a motion to be relieved as Defendants' counsel. (*See* Motion to Be Relieved as Counsel, filed Jan. 30, 2026.) Mr. Mason stated in his accompanying declaration that Defendant Traverso had not responded to his numerous phone calls, voicemails, text messages, and emails, and that he last heard from Defendant Traverso in approximately June of 2025. (Decl. in Supp. of Mot. to be Relieved as Counsel, § 2.) The hearing on the motion to be relieved as counsel is set for November 2, 2026 and defense counsel has not sought to advance it.

Defense counsel informed Plaintiffs' counsel that he had no reason to believe that the Defendant would appear at his deposition. Defendant did not appear for the deposition

If a party fails to appear for examination and produce documents as demanded in a duly served notice of deposition, the propounding party "may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document." (Code Civ. Proc., § 2025.450, subd. (a).)

The motion to compel "shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (*Id.*, subd. (b).)

If the motion is granted, "the court shall impose a monetary sanction" in favor of the propounding party and against the deponent, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (*Id.*, subd. (g).)

Motion to Compel
